

Age

In 2020, roughly one in ten requests for consultation to the Federal Anti-Discrimination Agency concerned age.

As a ground of discrimination, age featured with relative frequency in working life, when accessing private insurance, during finance and banking transactions and when accessing public health, social services and benefits, and tertiary education. For instance, job adverts may be discriminatory to older applicants because they are addressed at “young and committed” candidates. However, younger persons are also affected. For instance, younger women are especially frequently discriminated against in the recruitment process, because employers perceive a “risk” of absence due to pregnancy or child-care.

Under the General Equal Treatment Act (German abbreviation: AGG (Allgemeines Gleichbehandlungsgesetz)), discrimination based on age is essentially prohibited in working life and everyday transactions. However, particularly in the working world, but also with regard to credit agreements and insurance transactions, there are also far-reaching exceptions that apply to unequal treatment based on age.

Yet, above all where loans and financing is concerned, neither the Act nor court decisions clarify which exact credit transactions fall within the scope of the AGG (Allgemeines Gleichbehandlungsgesetz). Therefore, the Federal Anti-Discrimination Agency demands that the proportionality of and requirements for such exceptions to the equal treatment principle be clarified.

FAQs (frequently asked questions) on age

Frequently Asked Questions

1. What is discrimination based on age?

Experiencing discrimination means to be disadvantaged without any factual reason. For example, a job advertisement reading “Searching for an employee aged 25 to 45 years for a team leader position“ excludes older persons seeking employment.

2. How can I identify discrimination based on age?

Discrimination based on age can occur in different ways: As an insulting comment or as age restrictions. For example, if only people below or above a certain age are entitled to promotion or training.

3. Are old people affected by discrimination based on age only?

Both younger and older people can experience discrimination based on age. For example, in comparison to their older colleagues, young employees with work experience might receive less pay or holidays, are underestimated or overlooked when it comes to promotion because “their time is yet to come”.

4. Is discrimination based on age common?

Every fifth person in Germany has already experienced discrimination on the grounds of age and often people consider it as normal. One of the reasons for that is the high level of acceptance of unequal treatment on the basis of age.

5. What about the legal situation?

According to the General Act on Equal Treatment, discrimination on the grounds of age is illegal. The law also prohibits discrimination on the grounds of racism or ethnic origin, religion or belief, sexual identity, gender and disability.

However, often people are discriminated against because of a combination of the grounds mentioned above. This is called “multiple discrimination” or “intersectional discrimination”. For example, young women are disadvantaged in job application processes because of a potential pregnancy.

6. When does the General Act on Equal Treatment apply?

The General Act on Equal Treatment applies in employment and occupations, in bulk business and in the context insurances under private law.

7. What can I do, if I am discriminated against on the basis of my age?

If you have been discriminated against according to the General Act on Equal Treatment, you are entitled to compensation.

8. What do I have to keep in mind when defending myself against discrimination based on age?

Unfortunately, the law sets tight deadlines when it comes to claims for compensation. Within two months after the incident, you have to tell the accused person about your demands in written form.

9. Who can help me if I experience discrimination?

Many people are not aware of how to react appropriately or whom they shall approach after having experienced discrimination on the grounds of age.

Within the working context, the company‘s complaints office, the works council and the staff council serve as a contact points. Otherwise, the Federal Antidiscrimination Agency is pleased to help you. **Our counselling team will give you an initial legal assessment and can supply information on your rights.**

To the topic

Age related policies. A Global Review on Age Discrimination Legislation
Verfasser: Stephen Charters
Herausgeber: International Federation on Ageing
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Addressing Age Barriers. An international comparison of legislation against age discrimination in the field of goods, facilities and services
Verfasser/in: Rachel Crasnow / Schona Jolly / Claire McCann
Herausgeber: Age Concern England / Dane Age / Dutch expertise centre on age and society / Kuratorium Deutsche Altershilfe
PDF, File does not meet accessibility standards, 2MB

Do old workers earn more than they deserve?, in: Wirtschaftspolitische Herausforderungen des demografischen Wandels
Verfasser*in: Laura Romeu Gordo / Antje Mertens
Herausgeber: Thomas Salzmann / Vergard Skirbekk / Mirjam Weiberg
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→ **Discrimination in job advertisements**

→ **Discrimination on grounds of age**

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